

a preference," and the Court could not determine whether heirs were intended, or next of kin, or both (*f*).

"**Relations.**"—Again, a residuary estate was bequeathed to A., with a recommendation that she would "consider the testator's *relations*." Sir A. Hart asked, Who were the objects of the trust? Did the testator mean relations at his own death, or at A.'s death? Did he mean that she should have the liberty of executing the trust the *day after his death? And his Honour was of [*134] opinion that no trust could attach (*a*). But there can be no uncertainty of the objects where such a trust is to be executed by *will*, for then those who answer the description at the death of the donee of the power must be the parties contemplated (*b*).

6. **Uncertainty of the subject matter.**—The Court has refused to establish the trust from the uncertainty of the *subject* (that is, of the property claimed to be bound by the trust), where the recommendation was to "consider certain persons" (*c*), "to be kind to them" (*d*), "to remember them" (*e*), "to do justice to them" (*f*), "to make ample provision for them" (*g*), "to use the property for herself and her children, and to remember the church of God and the poor" (*h*), "to give what should remain at his death, or what he should die seised or possessed of" (*i*), "to finally

(*f*) *Meredith v. Heneage*, 1 Sim. 542, see 558, 559, 565; but see *Wright v. Atkyns*, G. Coop. 119.

(*a*) *Sale v. Moore*, 1 Sim. 534, see 540; and see *Macnab v. Whitbread*, 17 Beav. 299; but see *Wright v. Atkyns*, G. Coop. 119-123.

(*b*) *Pierson v. Garnet*, 2 B. C. C. 38; S. C. id. 226; *Atkyns v. Wright*, 17 Ves. 255; S. C. 19 Ves. 209; S. C. G. Coop. 111; and see S. C. T. & R. 162; *Knight v. Knight*, 3 Beav. 173; *Meredith v. Heneage*, 1 Sim. 558.

(*c*) *Sale v. Moore*, 1 Sim. 534; and see *Hoy v. Master*, 6 Sim. 568.

(*d*) *Buggins v. Yates*, 9 Mod. 122.

(*e*) *Bardswell v. Bardswell*, 9 Sim. 319.

(*f*) *Le Maitre v. Bannister*, Pr.

Ch. 200, note (1); *Pope v. Pope*, 10 Sim. 1; *Ellis v. Ellis*, 44 L. J. N. S. Ch. 225; [*Cole v. Hawes*, 4 Ch. D. 238.]

(*g*) *Winch v. Brutton*, 14 Sim. 379; *Fox v. Fox*, 27 Beav. 301.

(*h*) *Curtis v. Rippon*, 5 Mad. 434.

(*i*) *Sprange v. Barnard*, 2 B. C. C. 585; *Green v. Marsden*, 1 Drew. 646; *Pushman v. Filliter*, 3 Ves. 7; *Wilson v. Major*, 11 Ves. 205; *Eade v. Eade*, 5 Mad. 118; *Wynne v. Hawkins*, 1 B. C. C. 179; *Lechmere v. Lavie*, 2 M. & K. 197; *Bland v. Bland*, 2 Cox, 349; *Attorney-General v. Hall*, Fitzg. 314; and see *Meredith v. Heneage*, 1 Sim. 556; *Tibbits v. Tibbits*, 19 Ves. 664; *Pope v. Pope*, 10 Sim. 1.